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2026.PHHC.087092



IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M-33285-2026
Decided On: : 09.06.2026

DAVINDER SINGH @ KALU AND ANR.

....PETITIONER(S)

VERSUS

STATE OF PUNJAB

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. Rajeev K. Kapila, Advocate for the petitioners

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.0070 dated 02.05.2026 under Section 115(2) (corresponding to Section 323 IPC), 118(1) (corresponding to Section 324 IPC), 351(2) (corresponding to Section 506 IPC), 190 (corresponding to Section 149 IPC), 191(3) of BNS, 2023 (corresponding to Section 148 IPC) registered at Police Station Shri Hargobindpur, Police District Batala, District Gurdaspur and offences under Section 118(2) (corresponding to Section 326 IPC), 109 (corresponding to Section 307 IPC) BNS of 2023 added later on.

2. Contention

On behalf of the petitioner

Learned counsel for the petitioners submits that the petitioners have been falsely implicated in the present case, as a cross-version has been set up by the complainant, who is already facing a civil suit with regard to the disputed land. It is further submitted that the parties have also been restrained by the learned Trial Court in the said proceedings.

It is contended that, with an intent to illegally grab the land belonging to the petitioners and their family, the complainant is harassing the petitioners and their family by falsely implicating them in the present criminal case. The petitioners further submit that they are ready and willing to join the investigation and cooperate fully with the same.

Notice of motion.

On behalf of the State/Complainant

On the asking of the Court, Mr. Yatin Bunker, AAG, Punjab, for the respondent–State, and Mr. Manoj Singh Rai, Advocate for the complainant, accept notice and strongly oppose the prayer made by learned counsel for the petitioners. It is submitted that the petitioner No.1 was armed with a datar and had given kick blows to Surinder Singh and complainant-Baldev Singh.

3. Analysis

Having heard learned counsel for the parties and perused the record, this Court finds that the dispute between the parties arose out of a property dispute, which is also stated to be the subject matter of civil proceedings, wherein restraint orders have already been passed by the learned Trial Court.

It further appears that there is a cross-version between the parties. The role attributed to petitioner No.1 is of being armed with a datar and of having inflicted kick blows upon Surinder Singh and the complainant, Baldev Singh. However, the matter is still at the stage of investigation, and the petitioners have undertaken to join and cooperate with the same.

The petitioner has further undertaken in para 14 of the present petition that he is ready and willing to join the investigation and shall fully cooperate in its furtherance. Therefore, this Court finds no reason to decline the present petition.

4. **Relief:-**

Hence, the petitioners are directed to be released on anticipatory bail subject to their joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to their satisfaction. The petitioners shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.'

However, it is made clear that in case the petitioners do not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

09.06.2026

NainaRajput

Whether speaking/reasoned : *Yes/No*

Whether reportable : *Yes/No*